



CHAPTER xv.

An Act for incorporating and conferring powers on the A.D. 1904.
Bishop's Stortford and District Gas Company.

[24th June 1904.]

WHEREAS the Bishop's Stortford Gas Company Limited (in this Act called "the limited company") were in the year one thousand nine hundred incorporated under the Companies Acts 1862 to 1898 for the purpose of acquiring the undertaking of a former company under the same name and supplying gas to the town of Bishop's Stortford in the county of Hertford and to the neighbourhood of the said town and are now supplying gas within the said town and district :

And whereas the limited company in the year one thousand nine hundred and three acquired the undertaking of the Stansted Mountfitchet Gas Company Limited in consideration of the issue to the liquidator of the last-mentioned company of perpetual debentures to the amount of four thousand four hundred and eight pounds debentures of the limited company carrying interest at the rate of four pounds per centum per annum :

And whereas the capital of the limited company now consists of two thousand two hundred ordinary shares of ten pounds each and one hundred four per centum preference shares of ten pounds each and the said company have borrowed and now owe (inclusive of the amount issued to the liquidator as aforesaid) the sum of seven thousand two hundred and eight pounds :

And whereas it is expedient that the limited company should be dissolved and re-incorporated with further powers and should be authorised to supply gas within the limits defined by this Act and to raise additional capital as by this Act provided :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

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May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

Short title.

1. This Act may be cited as the Bishop's Stortford and District Gas Act 1904.

Incorporation of Acts.

2. The following Acts or parts of Acts are (except where expressly varied by or inconsistent with this Act) incorporated with and form part of this Act (that is to say) The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts the Lands Clauses Acts (except the provisions thereof relating to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking) the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 Provided that section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building."

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction :

The expression "the Company" means the Bishop's Stortford and District Gas Company incorporated by this Act ;

The expressions "the works" "the gasworks" and "the undertaking" respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be maintained by the Company and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively.

Limits of Act.

4. The limits of this Act (hereinafter called "the limits of supply") are the urban district of Bishop's Stortford and the parishes of Thorley Much Hadham Little Hadham Braughing Standon Albury Furneux-Pelham Stocking-Pelham Brent-Pelham

and Meesden in the county of Hertford and the parishes of Great Hallingbury Great Canfield Little Canfield Little Easton Great Easton Stansted-Mountfitchet Birchanger Elsenham Takeley Tilty Broxted Chickney Henham Thaxted Debden Widdington Newport Wenden - Ambo Wicken - Bonhunt Clavering Berden Rickling Quendon Ugley Manuden and Farnham in the county of Essex and so much of the parishes of Little Hallingbury and Hatfield-Broad-Oak (both in the county of Essex) as lies to the north of a straight line drawn from the southern extremity of the parish of Great Hallingbury to the eastern boundary of Hatfield-Broad-Oak where it intersects the road leading from Needham Green to Camnass Hall Farm Provided that the Company shall not supply gas within the said parishes of Much Hadham and Little Hadham or within the said parish of Newport without the consent of or otherwise than by agreement with any company (existing at the date of the passing of this Act) supplying gas within such parishes respectively.

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INCORPORATION.

5. From and after the passing of this Act the limited company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking of the Company and their executors administrators successors and assigns respectively shall be and they are hereby united into a company for the purposes hereinafter mentioned and shall be incorporated by the name of "The Bishop's Stortford and District Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

Incorporation of Company.

6. The Company shall be established for the purpose of manufacturing storing and supplying gas for lighting heating motive power and other purposes within the limits of this Act and may produce purchase store sell dispose of and deal in gas coke patent fuel tar pitch asphaltum ammoniacal liquor sulphate of ammonia and all other products refuse or residuum arising remaining produced by or resulting or obtained from the manufacture of gas or the materials used therein and may manufacture and sell such articles as can be produced from or by means of the several matters and things aforesaid or any of them and may purchase and store coal oil and other materials employed in the manufacture of gas and may (but only for the purposes of

General purposes of Company.

A.D. 1904. the Company within the limits of this Act) acquire or take and use any leave licence or authority (not being exclusive) to work use exercise or put in practice any invention or inventions under any letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production utilisation and distribution of gas the production of coke patent fuel tar pitch asphaltum ammoniacal liquor and other products from coal oil and other substances employed in or resulting from the manufacture of gas or otherwise in relation thereto (but not so as to acquire any exclusive right to the working use exercising or putting in practice of any such invention or inventions) and generally may carry on any business usually carried on by gas companies or which is or may become incidental thereto and may carry the powers of this Act into execution.

Present
property
of limited
company
vested in
Company
incorporated
by this Act.

7. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the passing of this Act were vested in the limited company or any person in trust for them or to which the limited company were in anywise entitled and all mains and pipes plant plugs lamps retorts gauges meters gas stoves and fires gas fittings lamp columns and brackets syphons apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of this Act or which immediately before the passing of this Act were the property of the limited company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the limited company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the limited company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the limited company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

Memo-
randum of
association
of limited
company
to be void

8. Subject to the provisions of this Act the memorandum of association of the limited company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and

requirements of any Act which applied to the limited company and the members thereof as such. But nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said memorandum of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed.

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without prejudice to remedies for antecedent breaches thereof.

9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said memorandum of association had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said memorandum of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and their shareholders and property shall to all intents and purposes represent the limited company and the members thereof as such and the property of the limited company as the case may be and the generality of this enactment shall not be restricted by any of the other clauses and provisions of this Act.

Nothing to affect previous rights and liabilities.

10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the limited company or any trustees or persons acting on behalf of the limited company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the limited company or the trustees or persons acting on behalf of the limited company the Company had been a party thereto.

Contracts prior to Act to be binding.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or

Actions &c. not to abate.

A.D. 1904. — against the limited company or any member thereof in relation to the affairs of the limited company or to which the limited company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action suit or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the limited company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the limited company and its members respectively.

Company
to satisfy
liabilities
of limited
company.

12. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the limited company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Recovery
of gas rents
&c.

13. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the limited company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

As to pay-
ment of debts
owing before
passing of
Act.

14. All persons who immediately before the passing of this Act owed any money to the limited company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the limited company or for the payment of which the limited company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

Certificates
&c. to remain
in force.

15. Notwithstanding the avoidance of the said memorandum of association all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed under them for and with respect to any shares in the limited company shall remain in full force and continue and be available in all respects as if they had not been avoided.

16. All documents books and writings which if the said A.D. 1904.
dissolution and avoidance had not taken place would have been Books &c.
receivable in evidence shall be admitted as evidence in all courts continued
and elsewhere notwithstanding such dissolution and avoidance. evidence.

17. All officers and servants of the limited company who Officers to
were in office immediately before the passing of this Act shall hold continue un-
and enjoy their respective offices and employments together with til removed.
the salaries and emoluments thereunto attaching until they shall
resign the same or be removed therefrom by the Company and
shall be subject and liable to the like conditions obligations pains
and penalties and to the like powers of removal and to the like
rules restrictions and regulations in all respects whatsoever as if
they had been appointed under this Act.

18. The books kept by the limited company for entering Present
the names and designations of the members thereof with the registers of
numbers of their shares and the proper distinguishing number of members
each share shall until some other register of shareholders shall to be con-
be provided by the Company continue to be kept for the same tinued,
purpose by the Company and be taken and considered as the
register of shareholders required to be kept by the Companies
Clauses Consolidation Act 1845.

CAPITAL.

19. The capital of the Company shall be sixty-five thousand Capital.
pounds whereof the sum of twenty-three thousand pounds divided
into two thousand two hundred ordinary shares of ten pounds each
and one hundred four per centum preference shares of ten pounds
each is in this Act called "the original capital" and the sum of
forty-two thousand pounds is in this Act called "the additional
capital" and shall be raised in manner hereinafter mentioned and
the Company may convert into stock the whole or part of their
original or additional capital when fully paid up.

20.—(1) The shares in the original capital shall be vested Vesting of
in the several persons who immediately before the passing of this shares in
Act were the registered holders of shares in the limited company original
one ordinary share being substituted for each ordinary share of capital
the limited company and one preference share being substituted in present
for each preference share of the limited company. shareholders.

(2) Every share so vested shall be subject and liable to the
same trusts powers provisions declarations agreements charges liens
and encumbrances as at the time of vesting affected the shares or

A.D. 1904. share for which the same is substituted and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition of or affecting such shares or share and every agreement deed or other instrument or testamentary disposition made before the passing of this Act and affecting shares in the limited company shall take effect with reference to the whole or a proportionate part as the case may be of the shares substituted therefor.

Company to call in and cancel existing share certificates and issue new certificates in lieu thereof.

21. The Company shall call in and cancel the existing certificates of shares in the limited company and issue in lieu thereof certificates in the form and under the conditions prescribed by the Companies Clauses Consolidation Act 1845 but the holders of such existing certificates of shares shall not be entitled to any certificates of proprietorship under this Act until they shall have delivered up to the Company to be cancelled the certificates of proprietorship issued to them before the passing of this Act or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof but if any holder of any existing share or shares of the Company neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address appearing in the Shareholders' Address Book the Company may retain any dividend declared or made payable upon or in respect of the shares so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the Company to have been lost or destroyed.

Power to raise additional capital.

22. The Company may from time to time raise additional capital not exceeding in the whole forty-two thousand pounds by the creation and issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but subject to the provision in this section hereinafter contained but the Company shall not issue any share created under the authority of this Act of less nominal value than ten pounds nor shall any such share or stock vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of forty-two thousand pounds. Provided also that the Company shall not at any time issue

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preference shares or stock exceeding in nominal amount (inclusive of the preference shares issued in substitution for the preference shares of the limited company) thirty-two thousand five hundred pounds.

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LIMITATION OF PROFITS.

23.—(1) The profits of the Company to be divided among the proprietors in any half year shall not exceed the following rates (which are in this Act referred to as "the standard rates of dividend") (that is to say) Seven pounds per centum per annum in respect of the ordinary capital four pounds per centum per annum in respect of the existing preference shares and five pounds per centum per annum in respect of the preference capital by this Act authorised to be raised unless a larger dividend be at any time necessary to make up the deficiency of any dividend to which the said ordinary capital may be entitled after the passing of this Act where such dividend shall have fallen short of the authorised rate of dividend. The Company if they think fit may create and issue preference shares or stock with a lesser rate of dividend than five per centum per annum.

Profits of
Company
limited.

(2) In case in any half year the funds of the Company applicable to the payment of the dividends on the preference shares or stock shall be insufficient to pay the full amount of the rate or rates of dividend on the preference capital a proportionate reduction shall be made in the dividend of each class of preference shares or stock.

24. Where in any half year the dividend of the Company on the ordinary capital of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such half year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such half year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the limited company existing at the passing of this Act shall be invested in any securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any half year in which the clear profits of the Company shall be insufficient to enable the Company in such half year to pay the dividend at the authorised rate on the ordinary capital of the

Power to
create a
reserve fund.

A.D. 1904. — Company and save as in this Act provided no sum shall in any half year be carried by the Company to any reserve fund.

Power to
create an
insurance
fund.

25. If the clear profits of the undertaking in any half year amount to a larger sum than is sufficient to pay the dividend on the preference capital and dividend on the ordinary capital at the authorised rate the excess beyond the sum necessary for that purpose may from time to time to the extent of one half per centum in such half year upon the paid-up capital of the Company be set apart and all sums so set apart shall be invested in any securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accident fire strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen :

Provided that when and so often as the said fund shall reach one twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend :

Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim or demand as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one twentieth of the paid-up capital of the Company as aforesaid.

Renewals.

26. The directors of the Company may in each half year if they think fit appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one half per centum on the paid-up capital for the time being of the Company to be called "the renewal fund" to provide for the renewal maintenance and repair of their gasworks mains and pipes and may from time to time appropriate as occasion may require any portion of such fund to such purposes Such fund shall be invested in any securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate

at compound interest until the fund so formed amounts to a sum equal to one tenth of the paid-up capital for the time being of the Company : A.D. 1904.

Provided that when and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that if such fund be at any time reduced below such sum it may thereafter be made up to that sum and so from time to time as often as such reduction shall happen. Provided further that resort may from time to time be had to the said fund for the purposes aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one tenth of the paid-up capital as aforesaid.

27. If the clear profits of the undertaking of the Company in any half year amount to a larger sum than is sufficient to pay the dividend on the preference capital and dividend at the authorised rate on the ordinary capital of the Company the excess or such portion of it as is not carried to the reserve fund insurance fund or renewal fund shall be carried to the credit of the divisible profits of the undertaking for the next following half year. Application of excess of profits.

REGULATIONS AS TO ISSUE OF CAPITAL.

28. Notwithstanding anything in this Act contained the Company shall when any shares or stock in the additional capital created under the powers of this Act are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock at the first offer thereof shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner. And provided that no priority of tender shall be allowed to any holder of shares or stock in the Company except that if any bid or offer by tender of any New shares or stock to be offered by auction or tender.

A.D. 1904. holder or holders of shares or stock in the Company be the same in amount as any bid or offer made by any other person the bid or offer of such holder or holders of shares or stock in the Company may be accepted in preference and preference may in like manner be given to any gas consumer whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of shares or stock in the Company.

Purchase money of capital sold to be paid within three months.

29. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Notice to be given as to sale of shares or stock.

30. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the clerk of each urban and rural district council whose district or any part thereof is within the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said district.

Disposal of shares or stock not sold by auction or by tender.

31. When any shares or stock in the additional capital created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same respectively for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of ordinary shares or stock and preference shares or stock of the Company in manner provided by and subject to the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and if the aggregate amount of shares or stock applied for by the said holders shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the said holders as nearly as may be in proportion to the amounts applied for by the said holders respectively Provided always that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares and stock in the additional capital created under the powers of this Act and the reserve put upon such shares or stock may upon such second offer for sale by auction or tender if the directors of the

Company think fit be less than the nominal value thereof and any shares or stock not then sold may be disposed of by the directors or offered to the holders of ordinary and preference shares or ordinary and preference stock at the last-mentioned reserved price in the manner aforesaid and so from time to time until the whole of such shares or stock is sold.

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32. Any sum of money which shall arise by way of premium from the issue of any such shares or stock after deducting therefrom (if the Company think fit) the expenses of and incident to such issue shall not be dealt with and treated as profits of the Company but shall be applied to the general purposes of the Company to which capital is properly applicable but shall not be entitled to dividend. Provided that in any case where a power to raise money by borrowing or to create a reserve fund insurance fund or renewal fund is made proportionate to the paid-up capital the premiums received from the sale of shares or stock by auction or tender as hereinbefore provided shall for such purpose be reckoned as part of the paid-up capital.

Application of premium arising on issue of shares or stock.

BORROWING POWERS.

33. The Company may borrow on mortgage of the undertaking any sum or sums not exceeding in the whole (inclusive of the sum of seven thousand two hundred and eight pounds already borrowed by the limited company) one third part of the amount of the capital of the Company at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power to borrow.

34. All mortgages and rentcharges granted by the limited company before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and rentcharges have priority over all mortgages and debenture stock granted created and issued by virtue of this Act.

Priority of existing mortgages.

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Arrears to be enforced by appointment of receiver.

35. The mortgagees of the Company may enforce the payment of arrears of interest or principal or principal and interest due on their mortgages and of any rentcharge by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand five hundred pounds in the whole.

Debenture stock.

36. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any such subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of mortgages over other debts.

37. All money raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of their undertaking or works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

Receipt in case of persons not *sui juris*.

38. If any money is payable to a shareholder or stockholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Application of money.

39. All money raised under this Act by the Company whether by shares stock debenture stock or borrowing shall be

applied only to the purposes by this Act authorised and for the general purposes of the Company being in all cases purposes to which capital is properly applicable.

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MEETINGS.

40. The first ordinary meeting of the Company shall be held within six months after the passing of this Act and all future ordinary meetings of the Company shall be held half yearly in the months of February or March and August or September in every year at the Company's office at Bishop's Stortford or at such other place and at such other time as shall be appointed for that purpose by an order of the directors.

First and future ordinary meetings after passing of this Act.

41. The quorum of general meetings (whether ordinary or extraordinary) of the Company shall be seven shareholders present in person or by proxy holding in the aggregate not less than one twentieth of the subscribed capital of the Company.

Quorum of general meetings.

DIRECTORS AND AUDITORS.

42. The number of directors shall be seven as hereinafter provided but subject to the following provision No vacancy caused by the removal of any first director by death resignation or retirement (other than retirement by rotation for purpose of re-election) shall be filled until the number be reduced below five and thereafter the number of directors shall not be more than five or less than three as the Company shall determine.

Number of directors.

43. The qualification of a director shall be the possession in his own right of stock or shares of the Company to the nominal amount of not less than two hundred and fifty pounds not less than one half of which must consist of ordinary shares or stock.

Qualification of directors.

44. The quorum of a meeting of directors shall be three.

Quorum of directors.

45. Alfred Slapps Barrett Benjamin Nind Beard Ernest Lionel Burton Harford Green William Hughes John Miller and Herbert Swarder shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being if they continue

First directors.

A.D. 1904. qualified eligible for re-election and at the ordinary meeting to be held in February or March in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the place of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

Auditors. **46.** The prescribed number of auditors shall be one unless the number be increased to two by an order of a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or the Incorporated Society of Accountants and Auditors and need not hold shares in the Company.

WORKS AND LANDS.

Powers as to construction and maintenance of gasworks &c. **47.** Subject to the provisions of this Act the Company may maintain alter improve enlarge extend and renew or discontinue their existing gasworks and manufactories upon the lands on which the same are erected or any part thereof and which are described in the Schedule to this Act and they may also erect lay down provide and maintain alter improve enlarge extend and renew or discontinue additional and other gasworks manufactories coal and oil stores retorts condensers scrubbers exhausters purifiers gas-holders sulphate plant tanks receivers drains sewers mains pipes meters gas stoves and fires gas fittings lamps lamp columns and brackets burners stop cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of this Act and may make store and supply gas accordingly and may produce sell provide supply and deal in coke patent fuel tar pitch asphaltum ammoniacal liquor sulphate of ammonia and other products employed in or resulting from the manufacture of gas and also meters fittings tubes pipes and other similar articles and things in any way connected with gasworks or with the supply of gas as they may think fit.

Power to purchase **48.** The Company may for the purposes of their undertaking purchase take and hold by agreement (but not otherwise) in

addition to the lands described in the Schedule to this Act any lands and hereditaments not exceeding in the whole ten acres which they may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the Schedule to this Act.

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lands by
agreement.

49. Subject to the Lands Clauses Acts the Company may sell lease or otherwise dispose of any lands vested in or acquired by them under the powers of this Act and not for the time being required for the purpose thereof.

Sale or lease
of lands not
required.

50. The Company may lay down place repair alter remove and renew mains pipes and culverts within the limits of this Act for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

Power to
utilise pipes
for ancillary
purposes.

51. The Company may upon the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street road footway or pavement such pipes as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are respectively applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to
lay pipes in
streets not
dedicated to
public use.

52. The following provisions for the protection of the county council of the administrative county of Hertford (in this section referred to as "the county council") shall unless otherwise agreed between the Company and the county council have effect:—

For protec-
tion of Herts
County
Council.

- (1) The Company shall not permit any trench made by them in any main road street bridge or other highway for the

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time being maintainable by the county council to be open for more than fifty yards in length at any place where only one cart can pass at the side of such trench or for more than one hundred yards in length where only two carts can pass at the same time :

- (2) Where any pipe conduit or other work of the Company is required to be laid or constructed beneath the surface of any such road street bridge or highway as aforesaid the same shall if possible be laid or constructed at such a depth that not less than two feet shall intervene between the surface of such road street bridge or highway and the upper surface of such pipe conduit or work Any difference as to the possibility of so laying or constructing any such pipe conduit or work shall be determined by arbitration as hereinafter in this section provided :
- (3) If the county council shall for the purpose of altering any such road street bridge or highway as aforesaid or rebuilding or altering any such bridge at any time require the position or level of any pipe conduit or other work of the Company laid in under or through any such road street or bridge as aforesaid to be altered the Company shall at their own expense on receiving notice in writing under the hand of the clerk of the county council so to do alter the same as reasonably required by such notice and under the superintendence of the officer of the county council and any additional expense in relation to the alteration or rebuilding of any such bridge as aforesaid or the approaches thereto to which the county council may be put by reason of necessity for providing for any pipe conduit or other work of the Company shall be paid by the Company to the county council :

The Company shall also pay to the county council all reasonable expense actually incurred by them in relation to the superintendence by this section authorised Any difference as to the reasonableness of any requirement contained in any such notice or as to the amount of any sum to be so paid by the Company to the county council shall be determined by arbitration as hereinafter provided :

- (4) Any difference by this section required to be determined by arbitration shall be determined by an engineer to be appointed (in default of an agreement between the parties) by the President of the Institution of Civil Engineers on the application of either party. A.D. 1904.

53. The provisions of the section of this Act whereof the marginal note is "For protection of Herts County Council" shall so far as applicable extend and apply to and enure for the benefit and protection of the rural district council of Hadham and any main road street bridge or other highway for the time being maintainable by that council. For protection of rural district council of Hadham.

54. For the protection of the Bishop's Stortford Urban District Council (herein referred to as "the council") the following provisions shall unless otherwise agreed between the Company and the council have effect (that is to say) :— For protection of Bishop's Stortford Urban District Council.

- (1) Whenever it shall be found necessary by the Company to break up any street within the district of the council not dedicated to public use in which is laid any pipe drain sewer tunnel or other work vested in the council the like notice and plan as are respectively required by sections 8 and 9 of the Gasworks Clauses Act 1847 to be sent to a road authority shall be given to the council and if the council notify in writing to the Company that any such pipe drain sewer tunnel or other work will or may be affected by the operations proposed to be carried out by the Company in such street the provisions of the said Act shall apply for the protection of such pipe drain sewer tunnel or other work and of the council in reference thereto as though the council were the person having the control or management of such street within the meaning of the said Act :

- (2) Where any pipe conduit or other work of the Company is required to be laid or constructed beneath the surface of any street for the time being maintainable by the council the same shall if possible be laid or constructed at such a depth that not less than two feet shall intervene between the surface of such street and the upper surface of such pipe conduit or work :

- (3) If any difference shall arise between the Company and the council as to the construction of this section or as to any matter referred to therein or arising thereout the

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same shall be determined by the arbitration of an engineer or other suitable person to be agreed upon between the Company and the council or failing such agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party.

For protec-
tion of Great
Eastern
Railway
Company.

55. For the protection of the Great Eastern Railway Company (hereinafter called "the railway company") the following provisions shall be in force and have effect and be binding on the Company:—

- (1) In laying down and executing or effecting the repairs or renewals of any mains pipes or other works which the Company may be authorised to lay down and execute upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by the railway company or the bridges approaches viaducts stations or other works or any level crossings over the railway of the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only according to plans and sections to be submitted to and in such manner as shall previously be reasonably approved by him in writing and in every case by and at the expense of the Company who shall also restore and make good the roads over any such bridges level crossings and approaches which the railway company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company Provided always that if such principal engineer shall not approve or disapprove any plans or proposals so submitted to him within twenty-eight days after the same are delivered or shall refuse or neglect to superintend the work the Company may proceed with the same without the approval of the plans as aforesaid and without the superintendence of the said engineer:
- (2) All such works shall be constructed and executed so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of the traffic over such railways or at any station thereon and if any injury or interruption

shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any such bridge level crossing or other property of the railway company the Company shall make compensation in respect thereof to the railway company the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided :

- (3) Any dispute or difference which may arise between the railway company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the railway company and the Company or either of them.

SUPPLY OF GAS &c.

56. The standard price to be charged by the Company for gas supplied by them to persons who shall burn the same by meter shall not at any time exceed four shillings per one thousand cubic feet in the urban district of Bishop's Stortford or within one mile thereof (hereinafter called "the inside area") and five shillings in any other part of the limits of supply (hereinafter called "the outside area") Provided that the Company may at any time charge less in any part or parts of the outside area than the price charged in any other part or parts of the outside area but so that such reduced price shall not at any time be less than the price charged in the inside area :

Provided that the Company may increase or reduce the prices charged by them for gas in the said portions of the limits of supply respectively above or below the said standard prices subject to a reduction or increase in the dividend on the ordinary capital as follows :—

In respect of any half year during any part of which the prices charged by the Company for gas shall have been one penny or part of a penny above the standard prices respectively the dividend payable by the Company for that half year shall in respect of each penny or part of a penny by which the standard prices shall have been increased be reduced below the standard rate of dividend by two shillings and sixpence upon every one hundred pounds of original ordinary capital

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and one shilling and ninepence upon every one hundred pounds of additional ordinary capital but such reduction shall be calculated only upon whichever of the said prices shall have been increased to the greater extent :

In respect of any half year during the whole of which the prices charged by the Company for gas shall have been one penny or more below the standard prices respectively the dividend payable by the Company for that half year may in respect of each penny by which the standard prices shall have been reduced be increased above the standard rate of dividend by two shillings and sixpence upon every one hundred pounds of original ordinary capital and one shilling and ninepence upon every one hundred pounds of additional ordinary capital but such increase shall be calculated only upon whichever of the said prices shall have been reduced to the less extent :

Provided that if in any half year the dividend payable shall comprise a fractional amount less than one quarter per centum the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividend and shall in the discretion of the Company either add such fractional amount to and pay the same with such succeeding dividend accordingly or add the same to the reserve fund.

Pressure of
gas.

57. All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six tenths of an inch and from sunset to midnight not less than eight tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and to penalties shall mutatis mutandis apply to such testing of pressure and two hours' previous notice shall be given to the Company of the time and place at which such testing shall be conducted.

No penalty
in case of
unavoidable
cause.

58. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in respect of

which it is proved that such insufficiency defect or excess was caused by an unavoidable cause or accident. A.D. 1904.

59. The prescribed number of candles shall be fourteen.

Quality of gas.

60. Within twelve months from the passing of this Act if the same has not already been done the Company shall provide a testing place at their works and shall provide and fix therein all the necessary apparatus and machinery for testing the purity illuminating power and pressure of the gas supplied by the Company and such testing place shall be deemed to be an official testing place in conformity with the provisions of the Gasworks Clauses Act 1871.

Testing place.

61. The prescribed burner shall be a Sugg's Wandsworth Argand burner or such other burner as the Board of Trade may approve on the application of the Company.

Burner.

62.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture fittings engines stoves ranges or pipes (hereinafter referred to as "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed.

Power to supply gas fittings &c. for heating and other purposes.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

63. If any person is required by the Company to give to them security in respect of any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Company to pay interest on money deposited as security for gas meter.

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Power to
refuse to
supply per-
sons in debt
for other
property.

Period of
error in
defective
meters.

64. If a person requiring a supply of gas has previously quitted premises at which gas was supplied to him by the Company without paying all gas or meter rent due from him for fittings the Company may refuse to furnish to him a supply of gas until he pays the same.

65. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by the Company or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

MISCELLANEOUS.

Dwelling-
houses for
persons in
Company's
employ.

66. The Company may purchase or take on lease or on any lands belonging or leased to them may erect or acquire fit up and maintain and let dwelling-houses for their officers servants and workmen.

Anti-fluc-
tuators for
gas engines.

67. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so doing or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

As to con-
struction
and placing
of pipes &c.
between
mains and
meters.

68. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :

(2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :

(3) The specification shall be published twice in some newspaper circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :

(4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

69. The Company may contract with any local authority company or persons beyond the Company's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that

Company may contract with local authority &c. for supply in bulk.

A.D. 1904. district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Discounts. **70.** It shall be lawful for the Company if at any time they may so think fit to allow discounts and rebates in the price of supplies to large consumers and to any local authority company or person contracting with the Company for any such supplies upon such terms and subject to such conditions as shall be agreed upon but in no case shall such discounts exceed twenty per centum upon the price obtaining and charged to the ordinary consumers in such district or districts :

Provided that such discounts or rebates shall be of equal amount under like circumstances to all consumers and that notice of the effect of this section shall be affixed in a conspicuous place at the Company's chief office for the time being.

Gas consumers to give notice to Company before removing.

71. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

As to service of notices on Company to discontinue supply of gas.

72. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Contracts for supplying gas for public purposes.

73. The Company may enter into and fulfil any contract or arrangement with any county urban rural or local authority having powers within any part of the limits of this Act for the supply of gas by the Company for public purposes within the limits of this Act for any period not exceeding under any one such contract or arrangement seven years.

Power for directors to determine remuneration of secretary.

74. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may from time to time determine the remuneration of the secretary of the Company.

75. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty. Every penalty under this section shall be recoverable summarily. There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

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Copy of
Act to be
registered.

76.—(1) If the urban council of the urban district of Bishop's Stortford (herein referred to as "the council") shall introduce in the next session of Parliament a Bill for an Act to empower them to purchase the undertaking of the Company and shall bona fide promote the same the Company shall not oppose such Bill except in so far as may be necessary to secure the insertion therein of provisions to protect their interests in respect to such purchase and for that purpose the Company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit.

Provisions as
to purchase
of under-
taking by
urban district
council of
Bishop's
Stortford.

(2) If the council obtain an Act as aforesaid they shall give to the Company notice in writing within three months after the passing of such Act of their intention to purchase and thereupon the Company shall sell and transfer and the council shall purchase and acquire the undertaking of the Company subject to all the then existing obligations and liabilities thereof.

(3) Any such sale and purchase shall be for such price and consideration and on such terms and conditions as may be agreed between the Company and the council or failing such agreement as shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression "the promoters of the undertaking" shall mean the council and the expression "lands" shall mean the undertaking of the Company but the arbitrator shall not in assessing the sum to be paid by the council to the Company have regard to the fact that the Company is incorporated by Act of Parliament but shall add to the sum to be paid to the Company as aforesaid a further sum equal

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The SCHEDULE referred to in the foregoing Act.

LANDS ON WHICH THE COMPANY MAY ERECT AND MAINTAIN WORKS
AND MANUFACTURE GAS AND RESIDUAL PRODUCTS AND STORE GAS.

1. Land in the parish of Bishop's Stortford in the county of Hertford on which are erected the existing gasworks and buildings of the limited company and which contains one acre one rood thirty-seven poles or thereabouts bounded on the north partly by lands and buildings belonging to Barclay Perkins and Co. Limited partly by the southern end of Gasworks Lane otherwise Anchor Street and partly by land and buildings belonging to Flinn and Sons on the east partly by the said land and buildings belonging to Flinn and Sons and partly by land belonging to the Great Eastern Railway Company and on the south-west by the River Stort.

2. Land in the parish of Stansted-Mountfichet in the county of Essex on which are erected the existing gasworks and buildings of the limited company and which contains two roods thirty-four poles or thereabouts bounded on the west and north by the Stansted Brook on the east by land and buildings belonging to Charles Gold and on the south by Water Lane.

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